

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

July 11, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins (arriving at 6:07 p.m.), Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Allen. Also present: Kristy Anderson, Deputy City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Valdez, and pursuant to support received by Ms. Broyles and Dr. Rinne, agenda items # 25 (a) and (b) were removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on June 27, 2011. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present.

Mayor Kaysen opened a public hearing to receive comments and input for applications for two available retail liquor licenses filed with the City Clerk's Office by One East Sixteenth, LLC d/b/a TBD, 1601 Central Avenue; Cheyenne Depot Museum, Inc. d/b/a Cheyenne Depot Museum, 121 West 15th Street; Syvn, Inc. d/b/a TBD, 218 West 17th Street; MTM, Inc. d/b/a The Cowboy Grill, (address not yet issued) to be located off Powderhouse Road between Spirit Lane and Gardenia Drive in The Pointe Plaza, and Let'er Buck Investment Group, LLC d/b/a Steamboat's, (address not yet issued) to be located off Gardenia Drive between Yellowstone Road and El Camino Real in Cathedral Commons. Mayor Kaysen announced the application for Syvn, Inc. was being withdrawn from the agenda at the request of the applicant. Owen Groshart, partner, Mingles Bar, and Wally Reiman spoke in opposition to the Cheyenne Depot Museum's application, expressing concerns with a City sponsored entity competing with other businesses and proposed liquor license operations not fully utilizing a retail type license to its full capacity. James Bowers, Executive Director, Cheyenne Depot Museum (Depot), explained the Depot is a non-profit agency that receives no City, state or federal funding; the retail liquor license will allow them to offer services to those people interested in renting their facilities for events and activities; that the Depot is not trying to compete with downtown businesses, and that the Depot is a private entity leasing the building from the City. There being no further comments or discussion and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the applications to the Finance Committee.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to LI Light Industrial District for Lots 1 & 2, Block 1; Lots 1 & 2, Block 2; Lots 3 & 4, 6-10, Block 3; and Lots 1-7, Block 4, Campstool Addition, Third Filing, Cheyenne, Wyoming (located south of and adjacent to Venture Drive, east of Campstool Road). Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Ash. Motion carried. Voting “yes” -- all members of the governing body present. (#3927)

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to LI Light Industrial District for Lot 1, Block 1, Hutchins Corner, 2nd Filing, Cheyenne, Wyoming (located at the southwest corner at the curve of Hutchins Drive, south of Campstool Road). Mr. Collins moved to approve on third and final reading, seconded by Ms. Ash. Motion carried. Voting “yes” -- all members of the governing body present. (#3928)

Ordinance creating Section 17.116.155, Special Use Permit: Oil and Gas Support Services, of Chapter 17.116, Design and Use Standards Generally, of Title 17, Zoning, of the Cheyenne City Code. Mr. Collins moved to approve on third and final reading, seconded by Ms. Ash. Upon inquiry regarding outside storage and screening of adjacent public rights-of-way contained in Section B.3. of the ordinance, Matt Ashby, Planning Services Director, explained the purpose of this section is to provide a buffer from other properties and public rights-of-way with some flexibility in the screening area. He provided information on what types of equipment would not be in compliance with the height and screening requirements, and reviewed the definition for storage and types of equipment to be stored under the permit. He further explained the ordinance does not prohibit re-application for a special use permit after expiration of the permit following the 2 year time frame. Comments followed regarding concerns with what might constitute “sufficient height” relative to screening requirements for equipment. Mr. Collins moved to amend Section B.3., to remove the language “of sufficient height to fully screen all stored materials,” seconded by Dr. Rinne. Discussion continued on the importance of some screening requirements as the businesses are located in the eastern gateway into the City. Motion to amend carried. Voting “yes”-- all members of the governing body present with the exception of Mr. Brown voting “no”. Main motion as amended carried. Voting “yes” -- all members of the governing body present. (#3929)

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District (Conditional) to LI Light Industrial District for Lots 2 & 3, Block 1, Hutchins Corner, 2nd Filing, Cheyenne, Wyoming (located west of and adjacent to Hutchins Drive, south of Campstool Road) -- referred to Public Services Committee.

Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Niobrara Energy Park, a replat of a portion of Tracts 6, 17 and 18, Clear View Tracts, and a portion of the N½ of Section 9, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located west of S. College Drive (behind Lighthouse Baptist Church), north of Laramie County Community College). Brad Emmons, AVI, agent for applicant, reviewed items they were requesting for changes in the affiliated Development Agreement as outlined in a memo to the governing body dated July 11, 2011. He stated requested

changes include: Removing Condition #15, which requires construction of Allison Road to the west plat boundary of the property; providing overhead power lines instead of underground lines as this is already in place for the area and placing underground power lines would be much more costly; changing the Resolution to direct the Mayor and City Clerk to sign the Development Agreement, and amending several technical/clerical items in the Development Agreement. Lisa Pafford, Building and Development Office, added that staff agrees with the content of the changes submitted and also agrees with a 2 week postponement in order to make changes accordingly. Ms. Pafford submitted a letter from City Engineer Doug Vetter, regarding the Allison Road extension, that was provided to her before the meeting. Brad Graham, developer of project and member of Coll-Ind, LLC, commented on the project, stating they are working with the City and County (re: Development Agreement issues) and that an application for a Business Ready grant to assist with the project has been submitted. He clarified he is not opposed to extending Allison Road but the County would like to cul-de-sac the road; reviewed the recommendation from Cheyenne Light, Fuel and Power with regard to overhead power lines, and noted the intent of the property location is to serve as a site to locate oil company equipment and supplies. Mr. Collins moved to adopt with staff recommendations #1 through 19, seconded by Ms. Ash. Mr. Spiker moved to amend the Development Agreement, seconded by Mr. Collins, with 4 technical items as follows: Section 3.a. - add the word "concurrently" between the words "built and "with" and the word "road" between the words "of" and "infrastructure"; Section 3.c. - add the words "by legal procedures of the entity with jurisdiction" after the word "vacated"; Section 5.c. - remove the words "Fire Department"; add a new Section 4.c. - "Lots adjacent to the existing school parcel will be required to place a 3 ft. landscape berm with a 4:1 slope with a 6 ft. privacy fence placed on the top of the berm. Landscaping will also be placed along the berm.". Mr. Spiker raised a point of order regarding the motion to amend with Mayor Kaysen clarifying the motion on the floor. Motion to amend carried. Voting "yes" -- all members of the governing body present. Mr. Spiker moved to amend that the Mayor has the authority to sign the Development Agreement and changing the resolution to reflect this, seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body present. Mr. Spiker moved to amend Condition #15 to extend the right-of-way to be set aside for the west boundary with the developer having the ability to create a cul-de-sac 400 ft. short of the west boundary as recommended by the County, seconded by Mr. Brown. Mr. Emmons noted the right-of-way is already set to be platted for extension to the west boundary and is a temporary easement for a cul-de-sac. Mr. Spiker stated if the right-of-way is to be platted he would withdraw his motion. Mr. Brown, as second to the motion, concurred with the motion being withdrawn. Mayor Kaysen announced the motion was withdrawn. Mr. Spiker moved to amend to remove Condition #15, seconded by Mr. Brown. Upon inquiry, Mr. Emmons explained building of the cul-de-sac in the right-of-way in relationship to potential future extension of the road. Further comments followed on connectivity, future road extension and reservation of the road right-of-way. Motion to amend to remove Condition #15 carried. Voting "yes" -- all members of the governing body present. Upon inquiry, Mr. Emmons discussed overhead power lines vs. underground lines, provisions of the Development Agreement, and requested an amendment to allow for ornamental street trees to be planted if overhead lines are allowed. Mr. Spiker moved to amend to allow overhead power lines and ornamental street trees, seconded by Mr. Collins. Ms. Pafford advised that staff will proceed with changes pursuant to the amendments with final review by the city attorney. It was confirmed neither the developer nor staff felt postponement of the item was needed. Motion carried. Voting "yes" -- all members of the governing body present. Upon inquiry, Mr. Emmons clarified that overhead power lines will be planned; urban standards for curb and gutter will be met, and, pursuant to the Development Agreement, a greenway path is also planned. Comment was made regarding not having overhead power lines as a standard for future

developments. Main motion as amended four times carried. Voting “yes” -- all members of the governing body present. (#5295)

[CA] Resolution approving Outside User Water/Sewer Services Agreement with Granite Peak Properties, LLC, Lot 1, Block 1, Swan Ranch Rail Park, Third Filing, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5296)

[CA] Resolution approving Outside User Sanitary Sewer Services Agreement with Marvin Strubhar, 3408 Victoria Drive, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5297)

[CA] Resolution authorizing the filing of an application with the Federal Transit Administration, an operating administration of the United States Department of Transportation, for Federal Transportation Assistance authorized by Title 49, United States Code, Section 5307 (Cheyenne Transit Program) -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution certifying that the Governing Body of the City of Cheyenne approves of the Albin and Burns projects to be submitted to the State Loan and Investment Board for the 2011 Countywide Consensus Block Grant funding -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for CFT Cheyenne Dell Range, a replat of a portion of Lot 1, Block One, Cole Fire Station Addition, Cheyenne, Wyoming (located north of Dell Range Boulevard, west of Grandview Avenue) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for WYODIGS Properties Subdivision, a replat of Lots 5, 6, & 7, Block 4, Campstool Addition, Third Filing, Cheyenne, Wyoming (located at the southeast corner of the intersection of Industry Court and Industry Drive) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Hospital Center, 1st Filing, a replat of Lots 1 thru 8, Block 138; Lots 1 thru 8, Block 139; Lots 1 thru 8, Block 172; Lots 1 thru 8, Block 173; Lots 1 thru 8, Block 200; vacated 16-foot alley in Blocks 138, 139, 172, 173, and 200; vacated 23rd Street between House Avenue and Evans Avenue; vacated House Avenue between 23rd Street and 24th Street; and House Avenue between 24th Street and 25th Street, Original City, Cheyenne, Wyoming (located between Warren and Evans Avenues and E. 22nd and 25th Streets) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution approving all loan documents for the State of Wyoming Drinking Water State Revolving Fund Loan #120 in the amount of \$9.4 million for the Southern Water Transmission Main Phase II Project and authorizing the Mayor, City Clerk and Director of the Board of Public Utilities to execute all related loan documents” -- referred to Finance Committee (sponsors - Mr. Brown and Mr. Spiker).

[CA] Resolution approving a project agreement with the Wyoming Water Development Commission for a grant in the amount of \$14,029,800 for the Southern Water Transmission Main Phase II Project and authorizing the Mayor, City Clerk and Director of the Board of Public Utilities to execute all related

agreements and documents” -- referred to Finance Committee (sponsors - Mr. Brown and Mr. Spiker).

[CA] Preliminary PUD Planned Unit Development (Zone Change) from MR-1 Medium Density Residential-Established and P Public Districts for Blocks 138, 139, 172, 173 and 200, Original City, Cheyenne, Wyoming (located between E. 22nd and E. 25th Streets, east of Warren and west of Evans Avenues) -- referred to Public Services Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter for Animal Shelter Services. Motion (per Consent Agenda) carried (amount not to exceed \$319,192.00). (#5704)

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter for Animal Control Services. Motion (per Consent Agenda) carried (amount not to exceed \$192,646.92). (#5705)

[CA] Professional Services Agreement between the City of Cheyenne and Ayres Associates to develop the Snyder Avenue storm sewer upgrade design (2007-2010 1% Sales Tax). (Motion (per Consent Agenda) carried (amount not to exceed \$80,855.00). (#5706)

[CA] Land Lease Agreement and Memorandum of Land Lease Agreement between the City of Cheyenne and Verizon Wireless for installation and maintenance of a cell tower in North Cheyenne Community Park -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Stride Learning Center to provide cooperative transit services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Laramie County, and the Cheyenne Downtown Development Authority for the purpose of administering the terms and conditions of the U. S. Environmental Protection Agency (EPA) Brownfields Assessment Coalition Grant -- referred to Finance Committee.

[CA] Consideration of Bid #R-32-11 for the surplus sale of approximately 600 95-gallon damaged plastic refuse containers for the Sanitation Division. Motion (per Consent Agenda) carried (Go Green Industries, Fontana, CA, amount \$0.15/pound (revenue to City)).

[CA] Consideration of Bid #M-21-11 for a contract between the City of Cheyenne and Aztec Construction Company, Inc., Cheyenne, Wyoming, for the Snyder Avenue Stormwater Pipeline Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$322,475.10). (#5707)

[CA] Consideration of Bid #M-23-11 for a contract between the City of Cheyenne and Streamline Markings, Inc., Billings, Montana, for the railroad crossing pavement marking upgrades for various City streets (federal funds). Motion (per Consent Agenda) carried (amount not to exceed \$88,089.00). (#5708)

[CA] Consideration of Bid #M-24-11 for a contract between the City of Cheyenne and Great Western Park and Playground, Wellsville, Utah, for the David R. Romero Community Park Playground Surfacing Renovation Project (Community Facilities fees-Park Infrastructure). Motion (per Consent Agenda) carried (amount not to exceed \$77,380.79). (#5709)

Restaurant liquor license application filed with the City Clerk's Office for Capiro Ambriento, LLC d/b/a Capiro Ambriento, 3617 E. Lincolnway, Cheyenne, Wyoming. Mr. Valdez moved to approve, seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body present.

Restaurant liquor license application filed with the City Clerk's Office for Morris House Enterprises, Inc. d/b/a Morris House Bistro, 2114 Warren Avenue, Cheyenne, Wyoming. Mr. Valdez moved to approve, seconded by Mr. Brown. Upon inquiry regarding percentage of stock owned in the corporation, Dameione Cameron, Morris House Bistro, clarified he and his business partner own the majority of stock with a few investors owning small percentages. Motion carried. Voting "yes" -- all members of the governing body present.

Re-appointments of Phil Griggs, James Dittman, Mary Aragon, and Ami Skeens to the Public Transit Advisory Board. Mr. Collins moved to approve, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of a Public Hearing to be held July 25, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Cadillac Ranch Bar, Inc. d/b/a Cadillac Ranch Bar, 3307 Nationway, Cheyenne, Wyoming. (License currently held by Cheyenne OTB, LLC d/b/a Wyoming OTB, 3307 Nationway, Cheyenne, Wyoming.)

Announcement was made of a Public Meeting to be held July 25, 2011, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for the purpose of receiving public comment on the submission of a Section 5307 Federal Grant to fund transportation services by Cheyenne Transit for Fiscal Year 2012.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:01 p.m.

Submitted by,

Kristy B. Anderson, CMC
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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